

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 10, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:05 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Bryan Cook, Richard Johnson, Pete Laybourn, Scott Roybal, Dicky Shanor and Jeff White. Absent: Rocky Case, Mike Luna and Dr. Mark Rinne. Also present were: Kylie Soden, Deputy City Clerk; Sylvia Hackl, City Attorney; Alessandra McCoy, Assistant City Attorney, Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding wages, salaries, or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus. She stated that spokespersons for the City are herself and Dicky Shanor, and Jonathan Bertsch and Andrew Dykeshorn are the spokespersons for the Union. She noted that any collective labor agreement that may be reached must be approved by the governing body with the agreement placed on the City Council agenda for approval.

Relative to one of the City's previously stated priorities, Mayor Orr inquired whether the Union has any solutions to manage overtime costs. Mr. Bertsch advised there currently aren't many options without restructuring the organization. He explained the Union has been conducting research and is hopeful that the new proposed Labor/Management Relations section of the contract, which provides for regular meetings between the administration and Union representatives, will help in this area. Mr. Shanor moved to meet in executive session, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 6:13 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 6:57 p.m. Mr. Shanor presented the City's counteroffer on the following sections, or portions thereof: Section 22, Classification of Employment and Basic Wages; Section 23, Overtime, and Section 29, Sick Leave. Mayor Orr recessed the meeting at 7:01 p.m. to allow Union representatives to caucus. [City Clerk note: Audio recording of the meeting was stopped]

Mayor Orr reconvened the special meeting at 7:07 p.m. Mr. Bertsch provided further information on overtime cost concerns and steps that can be taken to minimize overtime, explaining that major contributing factors to overtime are unpredictable sick leave and employee turnover. Mr. Bertsch

presented and discussed the Union's counteroffers on the following sections, or portions thereof: Section 22, Classification of Employment and Basic Wages; Section 23, Overtime, and Section 29, Sick Leave. Upon inquiry, Mr. Bertsch and Mr. Dykeshorn explained the Union's overtime algorithm. Mr. Shanor moved to meet in executive session, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 7:26 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:39 p.m. Mayor Orr expressed that the City recognizes that a priority of the Union is retaining benefits. Mr. Shanor presented the City's counteroffer on the following section: Section 22, Classification of Employment and Basic Wages. It was noted the City has no objections to proposed Sections 23, Overtime, and 29, Sick Leave. Mayor Orr recessed the meeting at 7:41 p.m. to allow Union representatives to caucus. [City Clerk note: Audio recording of the meeting was stopped]

Mayor Orr reconvened the special meeting at 7:52 p.m. Mr. Bertsch presented and discussed the Union's counteroffer on Section 22, Classification of Employment and Basic Wages. Mr. Shanor moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 7:59 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 8:21 p.m. She provided information on the City's financial outlook and advised she has asked all City departments to present a level budget for the upcoming fiscal year. She commented on items within the proposed contract that will be of benefit to fire fighters, and presented the City's counteroffer on Section 22, Classification of Employment and Basic Wages. Mayor Orr recessed the meeting at 8:24 p.m. to allow Union representatives to caucus. [City Clerk note: Audio recording of the meeting was stopped]

Mayor Orr reconvened the special meeting at 8:51 p.m. Mr. Bertsch presented and discussed the Union's counteroffers on the following sections, or portions thereof: Section 27, Wellness/Fitness Program; Section 33, Uniforms, and Section 22, Classification of Employment and Basic Wages.

Mayor Orr stated the next special meeting would be held on March 14, 2017. She stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 8:56 p.m.

Submitted by,

Kylie Soden
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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